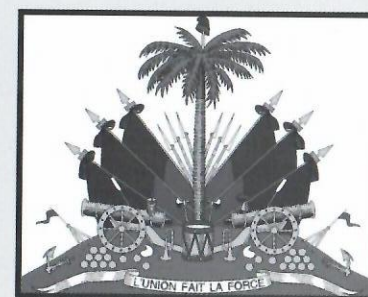


REPUBLIC OF HAITI

LAW ON FREE ZONE



SPECIAL ISSUE

LIBERTY EQUALITY FRATERNITY

REPUBLIC OF HAITI

LEGISLATIVE BODY

LAW ON FREE ZONES

Given Articles **36, 36.1, 36.3, 36.4, 38, 53, 54, 55.2, 55.3, 55.4, 66, 74, 111, 111.1, 111.2, 119, 121, 125, 126, 136, 144, 145, 159, 200, 200.4, 218, 219, 245, 246, 247, 250, 252, 253, and 254** of the Constitution of 1987;

Given Articles 96, 97, 502, 955 and following of the Code of Civil Procedure;

Given the Law of June 11, 1935 on commercial arbitration;

Given the Decree of January 16, 1963 on the alienation of State-owned private properties;

Given the Decree of September 22, 1964 on the rental of State-owned properties;

Given the Law of July 18, 1974 instituting industrial parks;

Given the Law of March 12, 1975 regulating the commercial use of tourism-related establishments;

Given the Law of September 20, 1979 modifying the Law of June 16, 1975 on the exercise of the real estate property rights granted to foreign nationals;

Given the Decree of September 28, 1977 on the real estate registration and real estate custody;

Given the Decree of March 29, 1979 creating a free zone in the Port-au-Prince area;

Given the Decree of April 5, 1979 on land taxes levied against built-on properties, such as amended by that of December 23, 1981;

Given the Law of September 19, 1982 on sales tax, as amended by the Decrees of October 10, 1984, March 26, 1985, August 31, 1989, September 28, 1990 and the Laws of February 5, 1995 and June 11, 1996;

Given the Decree of April 6, 1983 on immigration and emigration;

Given the Decree of March 30, 1983 ratifying the Paris Convention on the protection of industrial property;

Given the Decree of March 30, 1983 ratifying the convention for the recognition and the execution of arbitration awards established abroad;

Given the Decree of February 24, 1984 on the Labor Code;

Given the Decree of August 28, 1985 ratifying the Convention for the settlement of investment related conflicts arising between States and nationals from other States, signed by Haiti in Washington, D.C. on January 30, 1985;

Given the Decree of September 20, 1986 on income taxes, as amended by That of September 27, 1988;

Given the Decree of February 24, 1987 on local professional taxes;

Given the Decree of March 30, 1987 on the Customs Code;

Given the Decree of March 13, 1987 reorganizing the Ministry of Trade and Industry;

Given the Decree of March 13, 1987 reorganizing the Ministry of Economy and Finance;

Given the Law of August 28, 1987 organizing the Ministry of Social Affairs;

Given the Decree of October 12, 1987 modifying That of January 13, 1978 on licenses for foreign nationals;

Given the Decree of October 30, 1989 modifying the Investment Code;

Given the Decree of October 9, 1993 ratifying the Bern Convention on copyrights;

Given the Law of August 26, 1996 on the modernization of public State-owned businesses;

Considering that, in order to stimulate the national economy, it is necessary to take all practical measures towards accelerating the rate of directly productive investments;

Considering that the fight against poverty and the creation of new jobs constitute major objectives in the Government's economic and social policy;

Considering that the manufacturing industry oriented towards export and that re-export activities constitute an effective means to reach this short-term objective of creating new jobs;

Considering that any program for the promotion of exports implies the need to produce where the business working for the world market finds the optimal combination of production factors;

Considering that, throughout the world, free zones have proven to be one of the tools for optimizing this combination;

Considering that it is necessary to create a frame of reference for the implant of free trade zones;

On the basis of the report by the Ministries of Trade and Industry, of Economy and Finance and, after deliberation within the Cabinet, the Executive Power has proposed and the Legislative Body has passed the following law:

TITLE I PRELIMINARY PROVISIONS

CHAPTER I PURPOSE OF THE LAW

Article 1.- This Law establishes the conditions for the creation, implant, management, commercial use and supervision of free zones as well as the fiscal and customs system applicable to these zones, in order to facilitate domestic and foreign investments, national economic growth, the creation of durable jobs, enhancement of workers' technical capacities, the establishment and strengthening of technological and economic linkages between free zone businesses and local industry.

CHAPTER II SPECIFIC AND GENERAL DEFINITIONS

a) Specific definitions.-

Article 2.- For purposes of application of this Law, it is understood that:

- 1) **Free Zone:** a portion of land that is clearly delimited and entirely fenced in, creating an enclave where is applied, under supervision of the General Customs Administration, a special customs and tax system.
- 2) **Free Sub-Zone:** any production concern that already enjoys privileged customs and tax status being admitted into the free zone system on the basis of the achievement of the minimal conditions mentioned below.

b) General definitions

According to the provisions of this Law, it is considered that:

- 1) **Customs territory:** a territory outside the free zones where the customs legislation is fully applied;
- 2) **Free zone system:** set of privileges and benefits applied to the spaces defined and delimited as free zones;
- 3) **Customs supervision:** permanent supervision of entry and exit of goods to and from free zones, according to customs legislation

and to the standards established in the matter by the national authority constituted to this effect;

- 4) **Free zone promoter:** mixed or private entity seeking to promote a free zone;
- 5) **Free zone operator:** mixed or private entity managing, professionally on its own account or on behalf of a promoter, a free zone;
- 6) **Free zone grantee:** physical or moral person having solicited and obtained by State concession the status of free zone;
- 7) **Free zone user:** physical or moral person authorized to develop an activity within a free zone;
- 8) **Industrial activity:** production of industrial goods, assembly of sundries, including agricultural processing, production of electrical energy, etc.;
- 9) **Commercial activity:** purchase, sale, storage, fairs and exhibits, various types of handling in order to modify customs classification;
- 10) **General services:** any activity found within the context of international trade, notably: logistics and packing concerns, sea and air transportation agencies, insurance companies, legal consultancy companies, customs services, training centers, etc.;
- 11) **Special services:**
 - **Financial services:** banking services, currency exchange services and other services;
 - **Tourism services:** hotels and related services meeting the standards and criteria of tourism Free Zones;
 - Specialized clinics or hospitals, retirement homes, substance abuse clinics, spas for healthcare purposes (baths and therapeutic care);
 - Scientific services;
 - Electronic services.

CHAPTER III NATURE OF FREE ZONES

Article 3.- There can be two types of free zones: private or mixed.

Article 4.- Private free zones are those that are created and entirely managed by private entities, which can be physical or moral persons.

Article 5.- Mixed free zones are those whose creation and management result from a double public and private initiative: joint investments, public investments managed by an authorized private entity, etc.

CHAPTER IV INITIATIVE AND MONITORING OF THE APPLICATION OF THE LAW ON FREE ZONES

Article 6.- The Executive has the initiative for the development and publication of the Law on free zones through the Ministry of Trade and Industry.

Article 7.- The Ministry of Trade and Industry ensures the monitoring of the application of the Law on free zones through a service that is technically decentralized known as the Free Zone Authority, created to these ends.

Article 8.- Other ministries also contribute to the application of the Law on free zones. They include:

- The Ministry of the Economy and Finance
- The Ministry for Social Affairs;
- The Ministry of Public Works, Transportation and Communications;
- The Ministry of the Interior and of Territorial Collectivities;
- The Ministry of the Environment.

CHAPTER V MEANS FOR THE DETERMINATION AND THE PLACE OF LOCATION OF FREE ZONES

Article 9.- The Free Zones are determined by a Presidential Decree as established in the Cabinet. The choice of programs for the

development of free zones must be made as a function of criteria previously defined by the order of application.

This order defines the specific rules for its management and development, as well as the monitoring procedures needed to prevent attempts at speculation or at the creation of monopolies.

The determination of free zones must be effected in strict conformance with the national plan for city and regional planning and take into account certain factors or criteria, such as: urban density, non-agricultural zones, proximity of raw materials and of natural resources, port or communications facilities (access to roads), border zones, desert regions to be developed, accessibility to qualified labor.

Article 10.- Notwithstanding the considerations of the previous article, free zones may be established throughout the national territory with a particular emphasis on the most remote areas of the country.

TITLE II ORGANIZATION AND OPERATION MODE

CHAPTER I COMPETENT BODIES

Article 11.- Management and operation of the free zones is entrusted to a decentralized agency created to this end within the Ministry of Trade and Industry, which agency is named Free Zone Agency (FZA).

Article 12.- An Inter-Ministerial Commission is also created and is named the National Council on Free Zones (NCFZ) whose mission is defined in Article 15 of this Law.

Article 13.- The (FZA) is in charge of the Technical Secretariat of the National Council on Free Zones.

CHAPTER II NATIONAL COUNCIL ON FREE ZONES

Article 14.- The National Council on Free Zones is constituted as follows:

- * The Minister in charge of Trade and Industry or his/her Representative: President.

- * The Minister in charge of Economy and Finance or his/her Representative: 1st Vice-President and Treasurer;
- * The Minister in charge of Social Affairs or his/her Representative: Member: 2nd Vice-President;
- * The Minister in charge of Planning and External Cooperation: Member;
- * The General Directors of the ministries of Public Works, Transportation and Communications, of the Environment, of Tourism, and of the General Customs Administration: members without the right of discussion and vote;
- * Two (2) Representatives of the private sector chosen by the Executive out of a list of ten (10) members (two per sector: Trade, Industry, Banks, Unions, Cooperatives) designated by business associations, unions, cooperatives without the right of discussion and vote.

The Free Zone Agency of the Ministry of Trade and Industry is in charge of the technical secretariat of the NCFZ. It participates in meetings with the right of discussion only.

Article 15.- The National Council on Free Zones has the following mission:

- a) to receive application files for admission to the status of free zone;
- b) to decide on the opportunity to accept or reject applications for admission to the system of free zones and on related changes;
- c) to ensure that accepted projects are implemented in accordance with the Law;
- d) to authorize the operation of free zones;
- e) to define and regulate free zones;
- f) to approve and monitor the implementation of operations procedures and modalities for free zones;
- g) to approve the by-laws of the National Council on Free Zones (NCFZ).

Article 16.- The NCFZ meets every thirty (30) days as convened by the President and, in the case of extraordinary sessions, whenever circumstances warrant them.

The Quorum for holding meetings of the Council is five (5) members, including the President and one Vice-President.

Decisions resulting from the deliberations of the Council are made on the basis of a simple majority vote and, in the event of a tied vote, the vote of the President counts as two votes. The minutes of these deliberations must be signed by the members present and kept by the (FZA) for authentication of documents issued by the institution.

CHAPTER III FREE ZONE AGENCY

Article 17.- The Free Zone Agency will have the following assignments, among others;

- a) to manage the technical secretariat of the NCFZ;
- b) to implement and ensure the implementation of decisions made by the NCFZ;
- c) to organize the reception of actual and potential investors;
- d) to submit for approval by the NCFZ a quarterly report on the manner in which the establishment and operation of the free zones are handled;
- e) to evaluate applications for admission to the status of free zone;
- f) to take part, on a national and international scale, in all negotiations likely to lead to agreements or conventions on Free Zones;
- g) to supervise the operation of all accepted free zones;
- h) to ensure periodic monitoring of free zone activities.

Article 18.- The FZA may, upon approval by the NCFZ, secure the services of professionals or of consulting agencies, for the purpose of conducting specific technical studies.

CHAPTER IV FINANCIAL RESOURCES

Article 19.- The budget of the FZA emerges from that of the Republic, under the heading of the Ministry of Trade and Industry. Its financial resources originate from grants by the Public Treasury and from remittances paid on applications and from yearly operation fees paid to customs or fiscal authorities as preliminary processing fees and as yearly operation fees.

Article 20.- It behooves the FZA to maintain accounts for these resources, recorded according to source of funds, as prescribed by the law on governmental accounting.

TITLE III CHARACTERISTICS OF THE FREE ZONE SYSTEM

CHAPTER I SPECIAL CUSTOMS AND TAX STATUS

Article 21.- Promoters and/or operators of free zones (whether physical or moral persons) are granted the following customs and tax incentives in the context of their investment projects.

- 1) total exemption from income taxes for physical and moral persons during a period that does not exceed fifteen (15) consecutive years.

Following the period of total exemption, partial taxation will be applied as follows:

- a) at the close of the first year, fifteen percent (15%) of revenue is taxable;
- b) at the close of the second year, thirty percent (30%) of revenue is taxable;
- c) at the close of the third year, forty-five percent (45%) of revenue is taxable;
- d) at the close of the fourth year, sixty percent (60%) of revenue is taxable;
- e) at the close of the fifth year, eighty percent (80%) of revenue is taxable;

CHAPTER IV LABOR SYSTEM

Article 33.- Foreign operators and foreign staff working in free zone businesses are exempted from licenses to be granted to foreign nationals and from work permits.

The status of extraterritoriality enjoyed by free zones does not concern labor legislation fully applied to free zones, with the exception of provisions related to health services.

Nevertheless, free zone operators must provide ongoing health services capable of fulfilling user needs.

CHAPTER V ELIGIBILITY TO THE STATUS OF FREE ZONE

Article 34.- The status of free zone may be granted to any physical or moral person authorized to this end.

Article 35.- To obtain admittance to the status of free zone, the applicant (physical or moral person) must be accredited, enjoy a positive moral or professional reputation and must have perfectly good credit in the country of origin or in the country/countries where this person has previously operated for the previous five (5) years.

In addition, projects submitted in support of applications for free zone status must comply with ISO-14001 standards and subsequent, to ensure that promoters and/or operators are fully aware of environmental problems and make appropriate arrangements.

Article 36.- The status of free zone is granted on the basis of a concession by the Haitian State through the National Council on Free Zones (NCFZ).

TITLE IV PROCEDURES FOR APPLICATION, PROCESSING AND IMPLEMENTATION

CHAPTER I APPLICATION FOR FREE ZONE STATUS

Article 37.- To obtain a concession in the implant and commercial use of a free zone, the promoter must submit a reasoned request to the NCFZ in compliance with the standards and procedures established for the matter.

This request must indicate the region where the promoter wishes to implant the free zone and provide thorough information, particularly on the following issues:

- a) name, address, nationality of the promoter or of the business to be engaged in the activity; name, address and role of each of the signers, shareholders and/or investors and all related documentation;
- b) description of the project and implementation timeline;
- c) approximate number of employees, both Haitian and foreign;
- d) title of ownership of the land, the commitment to sell to the promoter, the lease, as the case may be, as well as the plans and a valid surveyor's report;
- e) the list of equipment, materials and/or raw materials to be received, etc.

The operator of a free zone must also provide a detailed cost-benefit analysis for the project, including plans of the targeted zone, of the buildings that will have to be implanted on it, of green areas to be furnished and of amenities to be included in the free zone.

Furthermore, it is necessary to provide the applicant with all required information concerning the requirements of this Law and the form to be filled out.

Article 38.- All free zones must include the following amenities:

- a) appropriate premises furnished with the materials needed for the smooth running of GCA and FZA services;
- b) health facilities that comply with international standards where appropriate healthcare services are administered;
- c) one cafeteria per business or one cafeteria common to all free zone users;
- d) well ventilated buildings providing a comfortable work setting, equipped with fire prevention apparatus;
- e) adequate basic infrastructure services: energy, communications and telecommunications; potable water, roads, drainage, waste and solid refuse management systems;

zones. This period is up to ten (10) years in the case of free sub-zones, renewable upon proof of a relatively greater degree of product processing or sophistication as compared to the initial status of production.

CHAPTER IV RIGHT OF REVIEW

Article 47.- The National Council for Free Zones is a deliberative body. Its decisions cannot be challenged except through right of review as provided for by Articles 48 to 51 of this Law.

Article 48.- Failing response or, in case of dissatisfaction with the decision of the National Council for Free Zones, the promoter has thirty (30) days, starting from notification of said decision, to exercise the right of review at the NCFZ.

Should the initial decision be upheld, a second review is, within the following fifteen (15) days, submitted to the Appeals Committee.

Article 49.- This Appeals Committee is constituted as follows:

- the Minister of Trade and Industry: President
- the Minister of Economy and Finance: Vice-President
- the Minister of Social Affairs: Member

The Director of the FZA once again ensures the functions of Secretary of said Committee.

Rights of review are receivable if the complainant, adversely affected by the decision of the NCFZ, presents a further file taking into account the comments of this body.

Article 50.- Within three (3) business days following submittal of the claim to the Appeals Committee, the President of said Committee convokes the other members into a session and proceeds to examine the depositions made by the parties. The Committee invites the plaintiff (the appealing business) to come and support his/her/its claim.

The Appeals Committee has a period of eight (8) business days to reach a decision on the claim and present a report to the NCFZ. The decision must be reasoned.

Article 51.- The Appeals Committee can confirm or annul the decision of the National Council on Free Zones. It imparts its decision to the Free Zone Agency, which, in turn, notifies the applicant. In cases of confirmation of the NCFZ decision to reject an application, the application is definitively rejected.

In cases where the initial decision is rejected, the NCFZ decides once again on the application file, within the same time limits previously set.

CHAPTER V IMPLEMENTATION

Article 52.- Grant of the status of free zone authorizes the grantee to begin works for the development of infrastructures and for the construction of buildings appropriate to the characteristics and nature of the goods and services to be provided to patrons.

Article 53.- For greater flexibility in funding, construction operations may be undertaken by increments, on the condition that the technical research report contain an overall development plan and an activities timeline staggering the completion of works.

TITLE V MANAGEMENT MODALITIES - DUTIES - CUSTOMS SUPERVISION AND SANCTIONS

CHAPTER I MANAGEMENT OF FREE ZONES

Article 54.- The promoter or operator of the economic free zone is free to make all arrangements likely to facilitate sound management of the developed site and to ensure the advancement of businesses implanted on the site, including:

- * deciding on security and safety measures for the storage of goods admitted into the free zone;
- * seeing to conformance of facilities with established security, sanitation and environmental protection rules;
- * accepting and monitoring, as in the manner of customs, persons having access to the free zone;
- * ensuring follow-up and monitoring of user activities;

- * establishing dues to be paid for use of facilities: amounts due for the rental or sale of spaces to house the businesses, charges for services provided (security, garbage disposal, healthcare and other available services), on condition that rental or sales contracts as well as price lists be submitted;
- * ensuring promotion of the free zone and of the businesses housed there while benefiting from exemption for expenses incurred;
- * seeking out and attracting foreign capital and investments.

Article 55.- The promoter remains free to directly manage the free zone, to entrust its management to a professional or to grant retrocession to an authorized operator.

Retrocession for the commercial use and the development of a free zone can be granted either through an open call for bids or through direct negotiations with potential operators (physical or moral persons) and the NCFZ must be notified of such.

The retrocession period can in no case exceed the time remaining on the concession. Contract specifications must establish the management modalities for the operator.

Article 56.- Any activity deemed potentially harmful to national security or capable of endangering the health of the population or the environment is prohibited within the Free Zone, including:

- * handling of items, such as firearms, gunpowder, explosives, munitions, materials and equipment of war, unless they are authorized by the Competent Authorities (Ministry of the Interior, State Secretariat for Public Security, the Haitian National Police) in the context of production activities or of the security of economic operators;
- * import of waste, whatever its nature, of narcotics, of radioactive materials (uranium, plutonium, iridium);
- * the production of goods or the use of raw materials having potentially harmful effects on the health of the population or on the environment.
- * ensuring promotion of the free zone and of the businesses housed there while benefiting from exemption for expenses incurred;

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- * import of waste, whatever its nature, of narcotics, of radioactive materials (uranium, plutonium, iridium);
- * the production of goods or the use of raw materials having potentially harmful effects on the health of the population or on the environment.

Article 57.- The free zone may only be accessible to authorized persons and vehicles.

Article 58.- No person may be permitted to reside in the free zone, with the exception of necessary and legally authorized staff, except in cases of special services: tourist and hospital industries, retirement homes, etc.

Article 59.- Retail sales within the free zone are generally prohibited. However, transactions on goods and services that are necessary for the sustainability of the free zone may be authorized by the FZA in

conformance with the rules and procedures provided for in this matter.

Article 60.- It is incumbent upon the promoter or the operator managing a free zone to supply essential services for the maintenance and smooth running of the businesses located in the free zone. These services include:

- * potable water, energy, communications and telecommunications (telephone, fax, Internet access);
- * interior roads indispensable to the movement of goods and of persons;
- * green areas ensuring a pleasant setting;
- * spaces provided for FZA and Customs permanent offices;
- * well ventilated buildings providing adequate working conditions;
- * a system of sewers, canals and drainage linking with the municipal network, if it exists, for sanitation purposes (collecting waste water) and especially for evacuation of rain water;
- * appropriate healthcare;
- * a space to house a training center for the workers employed by the businesses operating in the free zone;
- * a waste and solid refuse treatment system complying with environmental standards;
- * sufficient and well maintained facilities;
- * a cafeteria providing employees with moderately priced meals.

Article 61.- Vital services such as: water, electricity and telecommunications, are provided by the promoter, either directly or indirectly through arrangements with local or foreign suppliers, except Customs and FZA services subject to the authority of the administrations upon which they depend.

Concessions may also be granted to businesses for the commercial use of cafeterias or restaurants providing moderately priced meals.

CHAPTER II DUTIES

Article 62.- Exempted businesses under the terms of this Law remain, under pain of a fine, subject to the formalities of submittal of financial statements and other fiscal duties in the format provided for by the law.

Article 63.- Upon start-up of operations, any business benefiting from customs and tax exemptions on imports, must submit to the Free Zone Agency its plans for the use of raw materials and of all other commodities received duty free, as well as its production program, for observation and supervision purposes.

Article 64.- Any business benefiting from free zone status must meet the terms of the investment and production program as well as the timeline for completion submitted with its application for admission under pain of sanctions established by Article 70 and subsequent of this Law.

Article 65.- Any operator of a free zone wishing to discontinue operations in Haiti must notify the NCFZ of such no later than six (6) months previously and submit copies of such notification published for this purpose in two (2) Haitian mass circulation newspapers and in two (2) important periodicals in the countries where their suppliers and clients are based, in order to guarantee that financial or other commitments established with third parties be held.

Any operator who does not comply with this duty will not be authorized to remove his/her/its assets.

CHAPTER III CUSTOMS SUPERVISION

Article 66.- Customs Authorities must ensure that free zones are clearly and completely delimited by a fence, that access roads are limited to a maximum two gates, including one emergency exit to be opened only in cases of emergency and under customs supervision.

Article 67.- Hours at which the free zones open and close are determined by the operators themselves in accordance with NCFZ instructions, however customs supervision must be ensured continuously, twenty-four (24) hours per day.

Article 68.- Supervision activities by the General Customs Administration are summarized as follows:

- monitoring access roads on a permanent basis;
- instituting the compulsion for persons introducing goods into the free zones to keep books or accounts on said goods, thus allowing the movement of goods to be monitored;
- supervising the flow of goods admitted in order to ensure that they only undergo authorized operations and, in addition, that only authorized goods are admitted;
- monitoring, on the basis of documents, on scrutiny of products, raw materials and goods until the business removes them through the appropriate channels.

Article 69.- In each of the active free zones, the General Customs Administration must hold a permanent office in charge of applying the provisions of the law related to customs supervision to ensure evaluation of cargoes upon arrival and departure.

Every six (6) months the GCA must undertake a routine check of merchandise stocks in transit through the free zones.

CHAPTER IV SANCTIONS

Article 70.- Should there fail to be any compliance with the provisions of this Law, the business found guilty of such is subject to withdrawal of its incentives. These measures are to be taken by the National Council on Free Zones on the request of the ministries and/or the organizations concerned, without recourse for the business to apply for compensation.

Article 71.- Operators or managers of free zones who do not comply with the rules and do not fulfill the duties, such as those established by legislation in effect, contract specifications and technical construction and urban planning standards, may not be authorized to implant new free zones or expand operating capacities of already existing free zones. In some cases, authorization to operate will even be withdrawn.

Article 72.- Operators or managers of free zones who are in violation of the provisions of this Law and of the rules in effect through the

introduction of illegal goods are subject to a fine representing three (3) times the value of the non-paid duties and to confiscation of the illegal goods, which are sold at auction in accordance with the standards and procedures in effect.

TITLE IV TRANSITORY AND FINAL PROVISIONS

CHAPTER I TRANSITORY PROVISIONS

Article 73.- Industrial parks, concerns located in them and duty free concerns distributed throughout the Republic of Haiti may be granted the status of free zone, provided they fulfill the minimal conditions:

- a clearly delimited and entirely fenced space;
- ease of customs supervision;
- activities essentially oriented towards export and re-export.

Industrial parks may be admitted as free zones and duty free concerns may be admitted as free sub-zones.

Article 74.- Businesses whose activities are essentially oriented towards export or re-export may also relocate into industrial free zones.

Applications must be directly submitted to the operator who is authorized to grant authorization on the basis of standards and criteria established for this purpose by the NCFZ, which must be notified of such.

Article 75.- Acceptance files remain subject to the requirement that they be published in a mass circulation newspaper of the Republic of Haiti and in the official journal, *Le Moniteur*, in accordance with the rules and procedures established in this matter.

Article 76.- Upon publication of this Law, the General Customs Administration is free to make all arrangements it deems necessary in reinforcing its institutional, human and material capacities in order for it to efficiently respond to the requirements related to the specific nature of the customs work to be effected in the free zones.

CHAPTER II FINAL PROVISIONS

Article 77.- This Law repeals all laws or provisions of laws, all decree laws contradicting it and is published and executed at the request of the Ministers of Trade and Industry, of Economy and Finance, of Social Affairs, of Public Works, Transportation and Communications, of the Interior and of Tourism, each in the matter that concerns them.

Passed at the Senate of the Republic, on June 26, 2002, 199th Year of Independence.

(S) Dr. Jean Marie Fourel CELESTIN	President
Dr. Louis Gérald GILLES	First Secretary
Youseline A. BELL	Second Secretary

Passed at the Chamber of Deputies, on July 9, 2002, 199th Year of Independence.

(S) Dr. Rudy HERIVEAUX	President
Berry JOSEPH	First Secretary
André Jeune JOSEPH	Second Secretary

ON BEHALF OF THE REPUBLIC

Witnesseth,

THE PRESIDENT OF THE REPUBLIC ORDERS THAT THE ABOVE LAW OF THE LEGISLATIVE BODY BE PLACED UNDER THE SEAL OF THE REPUBLIC, PUBLISHED AND APPLIED.

Given at the National Palace, on July 24, 2002, 199th Year of Independence.

By the President	Jean-Bertrand ARISTIDE
The Prime Minister	Yvon NEPTUNE

The Minister of Interior and Territorial Collectivities	Jocelerme PRIVERT
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The Minister of Economy and Finance	Faubert GUSTAVE
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The Minister without Portfolio for the creation of a favorable framework for continued negotiations with the Opposition	Marc Louis BAZIN
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The Minister of Culture and Communication	Lilas DESQUIRON
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The Minister for Women's Issues Rights	Ginette RIVIÈRE LUBIN
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The Minister of Planning and External Cooperation	Paul DURET
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The Minister of Trade and Industry	Leslie GOUTIER
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The Minister of Tourism	Martine DEVERSON
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The Minister of Labor and Social Affairs	Eudes ST. PREUX CRAAN
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The Minister of Public Health and Population	Henry Claude VOLTAIRE
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The Minister of Justice and Public Security	Jean-Baptiste BROWN
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The Minister of Foreign Affairs and Faiths	Joseph Philippe ANTONIO
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The Minister of Public Works, Transportation and Communications	Harry CLINTON
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The Minister for Public Education, Youth and Sports	Myrtho CELESTIN SAUREL
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